

Fourth District noted that Hatlevig implicitly acknowledged the case had been dismissed by filing its motion for attorneys' fees on 8/31/2023 – but failing to serve it until two months later. (*Id.*) The court thus upheld the trial court's denial of the motion for attorneys' fees because 180 days after the dismissal was 2/11/2024, and while Hatlevig filed the motion before that date, it was not served until after the 180-day deadline expired. (*Id.*)

A similar timeline and procedural history are seen in this case. On 9/6/2023, Plaintiff filed a notice of settlement of the entire case. On 9/7/2023, the court issued a Notice of Order to Show Cause re: Dismissal After Conditional Settlement. After several continuances, on 2/9/2024, Plaintiff's counsel appeared in court and the parties requested the case be dismissed without prejudice. Under *Hatlevig*, 2/9/2024 is the date the clock began to run for Plaintiff to file the motion for attorneys' fees – which makes 8/7/2024 the deadline by which Plaintiff needed to bring this motion. Plaintiff filed the motion on 3/4/2026, well past the deadline.

Plaintiff's arguments in opposition are without merit. Plaintiff argues *Madrigal v. Hyundai Motor America* (2023) 90 Cal.App.5th 385 controls. However, *Madrigal* involves the interpretation of the cost-shifting provisions under CCP § 998 and does not address the filing deadlines for fee motions under Rules 3.1702 or 8.104. Moreover, Plaintiff failed to file the CCP § 998 Offer or enter judgment thereunder. Rather, Plaintiff appeared at the 2/9/2024 hearing and agreed to have the case dismissed – implicitly acknowledging the end of the litigation on its merits and the dismissal as in *Hatlevig*.

Plaintiff also argues that the court's retention of jurisdiction under CCP § 664.6 and the lack of a final judgment means the 180-day clock has not started. But this is entirely inapposite to the ruling in *Hatlevig* that makes clear Rule 3.1702 "...does not require an appealable order or judgment" to begin the deadline for serving and filing a motion for attorneys' fees. (*Hatlevig, supra*, 118 Cal.App.5th at 649.)

For these reasons, the Court DENIES the motion as untimely.

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CASE #	CASE NAME	HEARING NAME
CVRI2500380	YANG VS BMW OF NORTH AMERICA, LLC	MOTION TO COMPEL THE DEPOSITION OF DEFENDANT'S PERSON MOST KNOWLEDGEABLE AND PRODUCTION OF DOCUMENTS AND REQUEST FOR SANCTIONS

Tentative Ruling: No tentative ruling; the Court requests appearances either in person or telephonically.